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August 18, 2026

Office of the Superintendent of Schools
Frisco Independent School District
5515 Ohio Drive
Frisco, Texas 75035

Re: Level II Appeal — Reference Z005911-061526; Level I Decision of U'iLani Womble dated August 12, 2026

To the Superintendent:

I appeal the Level I decision issued August 12, 2026, by U'iLani Womble, Assistant Athletic Director, in Reference Z005911-061526. This appeal is filed within the twenty-calendar day period stated in that decision.

Manner of Filing

The District's complaint portal provides no mechanism to appeal the August 12, 2026 decision on Reference Z005911-061526. The record displays the June 15, 2026, complaint and the appeal submitted July 21, 2026, but offers no option to file a further appeal. I am therefore filing by email, as the District's Complaint Resolution office invited on July 21, 2026, when the portal returned Server Error 404 during the prior appeal window. I request written confirmation of receipt and written confirmation of the filing method the District will accept for this and any subsequent appeal.

This is the third occasion on which the District's electronic filing mechanism has been unavailable during a time-sensitive appeal window in this matter. The prior occasions were May 19 and 20, 2026, in connection with the Level III filing under FNG (LOCAL), and July 20 and 21, 2026, in connection with the appeal of the FFH (LOCAL) finding.

Preservation of Objections

I appeal in the alternative and without waiving any position previously stated. I have objected, and continue to object, to the assignment of this matter to an administrator within the Athletics department whose colleagues' conduct is the subject of the grievance, and to the

District's treatment of my July 21, 2026 appeal of the FFH (LOCAL) finding as the initiation of a new Level I proceeding rather than as an appeal. Filing this appeal is not a concession that the District's sequencing of levels is correct. It is taken to preserve the matter for review at every level the District's policy provides, including review by the Board of Trustees under FNG (LOCAL).

Grounds for Appeal

1. The decision does not address the policy framework objection.

The first ground stated in my July 21, 2026, appeal was that the July 20, 2026, investigation finding applied FFH (LOCAL), which governs complaints of discrimination and harassment and retaliation related to discrimination and harassment, rather than the framework governing a parent's grievance about the District's administration of its own programs. The August 12 decision recites that it responds to an appeal of FFH (LOCAL) findings under FNG (LEGAL) and FNG (LOCAL), but it does not address whether FFH (LOCAL) was the correct framework for the underlying investigation or what consequence follows if it was not. My June 15, 2026 complaint was submitted under the portal's own category, violation of a school law of the state. It did not allege student discrimination or harassment.

2. The decision does not address the investigator conflict.

The second ground stated in my appeal was that Deidra Rucker, who conducted the retaliation investigation and issued the July 20 finding, had served as the Level II hearing officer on my underlying grievance and issued the Level II decision in that matter on May 18, 2026. A person who decided the underlying grievance cannot impartially investigate whether the handling of that same grievance produced retaliation. The August 12 decision does not mention this ground.

3. The decision does not address the July 7, 2026, suspension.

The third ground stated in my appeal was that the investigation examined only the June 9, 2026, initiation of the Parent Code of Conduct inquiry and did not examine the July 7, 2026 Summary of Investigation, which suspended my son from all Iron Horse Aquatics events through December 31, 2026. The suspension is the completed adverse action. An analysis of retaliation that examines the opening of an investigation but not the sanction imposed at its conclusion is incomplete. The August 12 decision does not mention the July 7 action.

4. The decision does not address the temporal anchor.

The fourth ground stated in my appeal was that the July 20 finding turned on the observation that the June 9 investigation preceded my June 15 retaliation grievance, and that this uses the wrong starting point. The protected activity in this matter begins no later than February 26, 2026, with the Lighthouse Services ethics complaint, Report Number 9022620263313, and includes the Level I and Level II grievance proceedings and the Petition for Review filed with the

Texas Education Agency on June 9, 2026, at 6:32 p.m., approximately two hours after the investigation was initiated at 4:35 p.m. that same day. The August 12 decision does not address the temporal anchor.

5. Records relied upon have still not been produced.

The fifth ground stated in my appeal was that the July 20 finding relied on records never provided to me. The August 12 decision compounds this. It states that the reviewer examined my signatures and the dates of those signatures on the Iron Horse Parent Code of Conduct and all Iron Horse Aquatics agreements, and the circumstances reported by staff associated with the Arkansas venue. Neither category has been produced to me. I have no personal knowledge of any electronic acknowledgment record on the current version of the Parent Code of Conduct, and I have never been shown the report from venue staff. A finding cannot rest on documents the subject has not been permitted to examine or contest.

6. The FERPA ground stated for denying disclosure is incorrect.

The August 12 decision denies disclosure of the identity of people who provided information about my interactions with meet volunteers and officials on the stated ground that FERPA guidelines prevent releasing personnel information. The Family Educational Rights and Privacy Act protects student education records. It does not protect the identities of adult volunteers, meet officials, or venue staff, and it is not a personnel confidentiality statute. The stated basis for denial does not support the denial.

7. The conference offer does not cure the defects identified above.

The August 12 decision states that a conference was offered for August 10 or August 11, 2026 and that I declined to schedule one, and that an investigation therefore proceeded on the written submission. I acknowledge that I did not schedule a conference. That does not resolve the grounds stated in my appeal, each of which concerns the adequacy of the July 20 investigation and finding rather than the availability of a meeting. The decision was issued on the written record and is reviewable on that record.

Relief Requested

I request that the Superintendent:

a. Reverse the August 12, 2026, Level I decision and the July 20, 2026, finding of unsubstantiated;

b. Direct that the retaliation grievance be reinvestigated under the correct policy framework by a decision-maker with no prior role in the underlying grievance and outside the Athletics department;

c. Direct that the scope of any reinvestigation includes the July 7, 2026, Summary of Investigation and the suspension imposed through December 31, 2026;

d. Direct that the protected activity be measured from February 26, 2026;

e. Direct that all records relied upon be produced to me for review and response, or that any finding resting on records not produced be set aside;

f. Confirm in writing the filing method the District will accept further appeal, including appeal to the Board of Trustees under FNG (LOCAL); and

g. Such further relief as is appropriate.

I reserve all rights in this and any other forum in which related matters are pending.

Respectfully submitted,

/s/Stephen Ray Jordan
Stephen Ray Jordan
Pro se

cc: Esther Kolni, General Counsel
Dr. Todd Fouche, Superintendent